

M/S Ganesh Laxmi Rice Mill v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 February 2021 · Writ - C No. 23228 of 2020 · WRIT - C No. 23228 of 2020 · **Writ disposed; CGRF directed to decide complaint 371/20 within six weeks.**

HEADNOTE

Without entering the merits, the Division Bench disposed of a rice mill's mandamus petition seeking a time-bound decision on its pending clause 7.10 Supply Code complaint, directing the Consumer Grievance Redressal Forum to consider and decide complaint no. 371/20 in accordance with the UPREC (CGRF and Ombudsman) Regulations, 2003, preferably within six weeks. Constitutional challenges to the CGRF Regulations were not pressed.

FACTUAL SUMMARY

The petitioner rice mill sought a mandamus requiring the Consumer Grievance Redressal Forum to decide its miscellaneous application dated 7 September 2020, registered as complaint no. 371/20 under clause 7.10 of the U.P. Electricity Supply Code, 2005, which remained pending. It also pleaded that clauses 3.3(i), 3.2(iv)(c) and 3.12 of the CGRF and Ombudsman Regulations, 2007 were ultra vires Article 13 and inconsistent with section 103(2) of the Electricity Act, 2003, but pressed only the time-bound decision prayers. Counsel for the Forum and the licensee asked for reasonable time to consider the complaint.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF — time-bound decision of pending complaint

HOLDING

A pending clause 7.10 Supply Code complaint is to be considered and decided by the Consumer Grievance Redressal Forum in accordance with the UPREC (CGRF and Ombudsman) Regulations, 2003; without entering the merits, the Court directed decision of complaint no. 371/20 preferably within six weeks of production of the order. ¶ 1

PRINCIPLE TAGS

consumer-grievance-redressal-forum-remedy-clause-7.10

The Court treated the pending clause 7.10 complaint as the proper CGRF route and, without examining it on merits, directed the Forum to consider and decide complaint no. 371/20 in accordance with the CGRF Regulations within a fixed time. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF CGRF COMPLAINT NO. 371/20

The Court expressly did not enter into the merits. ¶ 1

NOT DECIDED — VIRES OF CGRF AND OMBUDSMAN REGULATIONS CLAUSES 3.3(I), 3.2(IV)(C) AND 3.12 VIS-À-VIS ARTICLE 13 AND SECTION 103(2) OF THE ELECTRICITY ACT, 2003

Prayers (iii) and (iv) were not pressed. ¶ 1